IN THE INDUSTRIAL COURT OF MALAYSIA

CASE NO: 7/4-554/23

BETWEEN

SAMUGAM A/L KRISHNAN

AND

KNIGHTS BRIDGE AVENUE SDN BHD

AWARD NO: 1807 OF 2025

BEFORE : **Y.A. PUAN VANITHAMANY SIVALINGAM**
- **Chairman**

VENUE : Industrial Court of Malaysia, Kuala Lumpur.

DATE OF REFERENCE : 10.03.2023.

DATES OF MENTION : 11.04.2023 & 11.12.2023.

DATES OF HEARING : 17.02.2025 (P.H) & 12.06.2025.

REPRESENTATION :

Mr. Lavaniyan Nathan together with
Mr. Rubachandra A/L Govindasamy
Messrs. Lavaniyan Nathan & Associates
(Counsel for the Claimant)

Mr. V. Vijayan together with Mr. Peter Halach Santiago
Messrs. Shearn Delamore & Co
(Counsel for the Company)

REFERENCE

This is a reference by the Director General of Industrial Relations to this to this Industrial Court under Section 20(3) of the Industrial Relations Act 1967 ("The Act") arising out of the alleged unlawful termination of **SAMUGAM A/L KRISHNAN** ("the Claimant") by his employer, **KNIGHTS BRIDGE AVENUE SDN BHD** ("the Hotel").

This Court takes cognizance of the following bundles, statements, submission, and cause papers filed.

DOCUMENTS IN COURT FILES

I. Amended Statement of case dated - 25.08.2023

II. Statement of reply dated - 25.10.2023

III. Rejoinder dated - 17.11.2023

IV. Claimant's Bundle of Document - (CLB1)

V. Company's Bundle of Document - (COB1, COB2)

VI. Witness Statement of the Claimant - SAMUGAM A/L KRISHNAN (CLWS1)

VII. Witness Statement of the Claimant - MUHAMMAD SHAHIZAT BIN AZNAN (CLWS2)

VIII. Witness Statement of the Company - YVONNE CHE SIEW CHING (COWS1)

IX. Witness Statement of the Company - VIJAYAN ARUMUGAM (COWS2)

X. Company's Written Submission dated - 01.08.2025

XI. Claimant's Written Submission dated - 01.08.2025

XII. Company's Written Submission in Reply dated - 24.08.2025

XIII. Claimant's Written Submission in Reply dated - 05.09.2025

XIV. Company's Bundle of Authorities

XV. Claimant's Bundle of Authorities

BRIEF FACTS

THE CLAIMANT'S CASE

[1] The Claimant was employed by the Hotel since 14.1.2018 as the Maintenance Manager for a monthly salary of RM8,740.00. The Claimant's duties and responsibilities were;

i) Supervising and leading all maintenance processes and operations;

ii) Tracking expenses and overseeing the budget for maintenance;

iii) Maintaining all machinery to ensure it's at working standards;

iv) Creating and implementing maintenance procedures;

v) Conducting regular inspections of the facilities to detect and resolve problems;

vi) Planning and managing all repair and installation activities;

vii) Ensuring all department workers adhere to safety policies and procedures;

viii) Assigning repairs schedules and evaluating repair cost estimates;

ix) Documenting and preparing daily progress reports and maintenance logs;

x) Overseeing equipment stock and placing orders for new supplies when necessary;

xi) Allocation and received RM1000 monthly from Finance Department for any ad-hoc purchases required for Maintenance Department and submit the claims accordingly with receipts;

xii) All engineering operations matters daily need to update with Operation Manager Mr. Vijay.

[2] On 15.9.2022, the Hotel issued a show cause letter to the Claimant with the following allegations;

Hilton Garden Inn
Kuala Lumpur Jalan Tuanku Abdul Rahman North

SST Reg. No W10-1808-32002099

PRIVATE & CONFIDENTIAL

Our Ref	: HR/SC0012022/HGI	Date	: 15/09/2022
Name	: Samugam A/L Krishnan	Employee ID	: H0047
Position	: Maintenance Manager	Department	: Engineering

Dear Samugam

Subject: SHOW CAUSE LETTER

Reference is made to our meeting on Monday 12 September 2022. It was brought to my attention that you have breached the code of conduct by failing to act with honesty and integrity on the following matters:

1. On 27 January 2022, at 2 PM you raised a Team Member Incident Report about a car incident involving vehicle Honda CRV, VGY 8223 at Level 5 parking area located at the Hilton Garden Inn Kuala Lumpur without declaring to the Security Department that you were the owner of the vehicle.

2. You have failed to notify your superior, Mr Vijay, the Operations Manager about the car incident involving your vehicle.

3. On the same date, you requested the Team Member Incident Report Form from Saiful Azli Bin Ab Hamid, the Security Team Leader, and said that a guest wanted to claim insurance for hitting the car against the pillar at the Level 5 parking area. You told Saiful to sign the Incident Report form without notifying him that you were involved in the car incident and the vehicle belongs to you.

4. In the Team Member Incident Report, it was stated that the report was taken by Saiful Azli but, according to the statement made by you on 12 September 2022, the Incident form was raised by you.

5. On 27 January 2022 at 2PM, which was the date and time of the car incident and also the date and time of the Incident Report Form was raised, you have also established 9 specific items that were claimed as damages list before having the vehicle inspected and diagnosed by a specialist from the car repair center.

    a. Head light
    b. Front bumper
    c. Wheel disk AL 18XAR
    d. Protector wheel
    e. Panel fender
    f. Face bumper
    g. Front fender paint
    h. Face assy front bumper
    i. Front bumper protector and etc..

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50100 Kuala Lumpur
MALAYSIA
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www.hgikualalumpurnorth.com

Hilton HONORS

6. The nine (9) items in the damage list that you indicated in the Team Member Incident Report are of the same description from the quotation by SAG Ultimate Sdn Bhd, Body and Paint Quotation reference no 8400039507 dated 26 January 2022, time 12:02:03 which did not match the date of time of the incident that you reported which is 27 January 2022 at 2PM.

7. On 9 August 2022, you submitted Non-Motor Takaful Claim to Etiqa Takaful, which is the company's insurance provider, for the purported vehicle repair for Honda CRV, registration number VGY 8223, amount RM10, 616.80 quoted by SAG Ultimate Sdn Bhd, Body and Paint Quotation reference no 8400039507 dated 26 January 2022 that contradicts with the date of the incident which occurred on 27 January 2022.

8. It is the hotel policy where there was a car park customer notice to inform the following: *"Owners using this car park do so entirely at their own risk. Hilton regrets that no responsibility can be accepted for damage to or theft of motor vehicles or their contents."* Despite the notice, you took advantage to claim for the car damages from the incident you claimed occurred at the Level 5 parking area at HGI South although you admitted in the Statement dated 12 September 2022 that the incident was because you turned your steering wheel into the wrong direction by mistake which is an act of your negligence.

Please explain in writing **no later than Tuesday, 20 September 2022** the above-mentioned matters. If we do not receive your written explanation by the stipulated date, it is deemed that you have no explanation to offer and the management shall decide on the next course of action.

Yours sincerely

YVONNE CHE
Cluster Director of Human Resources
for and on behalf of the Owning company,
Knights Bridge Avenue Sdn Bhd as Hilton Garden Inn Kuala Lumpur, North

Copy: *Personal File / Department Head*

I acknowledged receipt of the above letter and understand the content stated therein.

Name: Selvagam M/L Krishnan
Date: 15/09/2022

Remark: Above matter are mangament one to one talk and take action letter. Im received today only this letter details.

MALAYSIA PERUSAHAAN

[3] The Claimant replied to the show cause letter as follows;

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Date: 19th September 2022

Your Ref: HR/SC0012022/HGI
Our Ref: REPLY01/HR/SC0012022/HGI

To: Ms. Yvonne Che
Cluster Director of Human Resources
Knights Bridge Avenue Sdn Bhd
Hilton Garden Inn Kuala Lumpur

From: Samugam A/L Krishnan
Maintenance Manager (H0047)
Maintenance Department
Hilton Garden Inn Kuala Lumpur



EXPLANATION FOR SHOW CAUSE LETTER DATED 15.9.22

1. **MATTER NO:1**
   The incident happened on 27th January 2022 at about 2.00pm and I reported to Mr Aizuddin (Assistant Security Manager) that my car met in an accident at carpark Level 5. He passed me a Team Member Incident report form and asked me to fill it up. I did fill up the form and called Mr. Aizuddin to pass the report but he mentioned that he has left the hotel and went back home. He asked me to pass the incident report tomorrow to Mr. Saiful (Security Supervisor) ie on 28th January 2022.
   Based on my Team Member Incident Report form please take note on the following:
   a). Team member incident report form is for associate involving in accidents or incidents at work place where else the Guest will use the Internal Incident Report form.
   b). It is clearly stated in the incident report form my full name, ID number, Department, Position and date joined.
   c). In the same form under description of incident, I have clearly stated that it was my car that was involved in the accident. (refer line 1 & 2 in the incident report)
   I DISAGREE TO YOUR ALLEGATION N0:1

2. **MATTER NO:2**
   I did contact Mr. Vijay (Operations Manager) on the same day at about 2149hrs to report on the matter and informed Ms. Betty on the incident too.
   Ms. Betty informed me to check with the Insurance Company if this can be claimed from the Insurance. I than contact Ms. Fathia from Etiqa.
   I DISAGREE TO YOUR ALLEGATION NO:2

3. **MATTER NO: 3**
   I have clearly mentioned in Matter NO: 1 that it was my car that was involved in the accident. On 28th January 2022, after handing over the report to Mr. Saiful, both me and Mr.Saiful went to Lobby Security Office to see the CCTV footage on the incident. Mr. Saiful later confirmed that it was my car and also forwarded the video clip for my reference.
   I DISAGREE TO YOUR ALLEGATION NO:3

4. MATTER NO: 4

On 12th September 2022, HR and myself during our verbal conversation the following was mentioned:

a). Like all other previous incident the Guest or Team member has to raise the Incident Report form similarly in my case the Team Member Incident Report was done by me as instructed by Mr. Aizuddin and forwarded to Mr. Saiful for further investigations. He later verified the incident and the CCTV footage and he signed and accepted my report.

I DISAGREE TO YOUR ALLEGATION N0:4

5. MATTER NO: 5

Please refer to Team Member Incident Report Form under Description of Accident/Incident that requires details like (who, what, when, why and how).

Definitely I have to mention in detail on what are the damages incurred to my car during the accident for investigation purpose as requested in the form. These damages are those that I can see from outside.

I DISAGREE TO YOUR ALLEGATION NO:5

6. MATTER NO :6

The car was sent to SAG Ultimate Sdn Bhd on 29th January 2022 for further inspection and for the request of quotation. The quotation was received on 31st January 2022 via whatsaap. I strongly believed that there was a typo error on the date of quotation. See my whatsapp communication with the PIC person. Attached herewith the official letter from SAG Ultimate Sdn Bhd on the admission of their mistake. Should you still have any doubts you may contact Mr. Steve Seow (HP:016-2151638) for further clarification.

Please refer to the date stated in Team Member Incident Report and the CCTV footage date to confirm on the incident date.

There is no way that the incident happened on 26th January 2022.

I DISAGREE TO YOUR ALLEGATION NO: 6

7. MATTER N0: 7

Please refer to MATTER No: 6 as I have explained in detail.

I DISAGREE TO YOUR ALLEGATION NO: 7

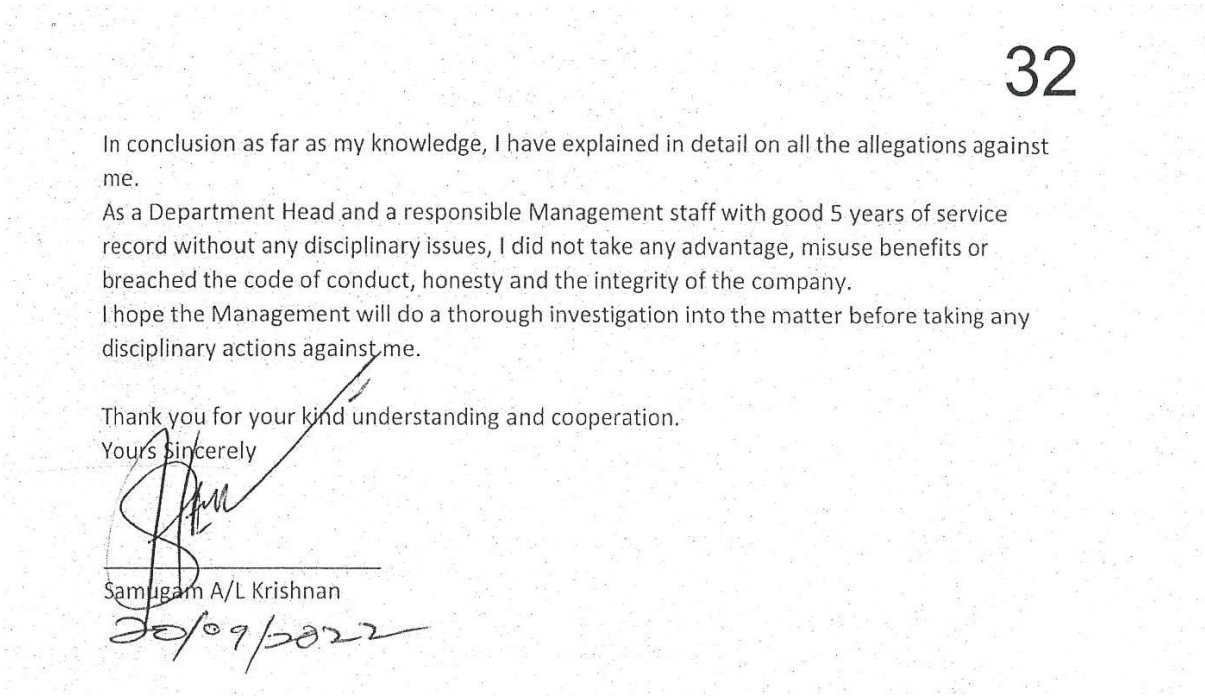
8. MATTER NO: 8

After the incident I have informed Ms. Betty (Finance Manager) and Mr. Vijay (Operations Manager) on the incident and seek their advice and assistance if I could do any Insurance claim. After getting approval from Ms. Betty and Mr. Vijay I submitted my claim form to the Insurance company. (see claim form approved by Mr. Vijay).

Its only after getting their advice and approval I proceed for the insurance claim.

Should the Management has rejected my claims at this junction, I will not have proceeded for further process and claim.

I DISAGREE TO YOUR ALLEGATION NO: 8



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In conclusion as far as my knowledge, I have explained in detail on all the allegations against me.
As a Department Head and a responsible Management staff with good 5 years of service record without any disciplinary issues, I did not take any advantage, misuse benefits or breached the code of conduct, honesty and the integrity of the company.
I hope the Management will do a thorough investigation into the matter before taking any disciplinary actions against me.

Thank you for your kind understanding and cooperation.
Yours Sincerely

Samugam A/L Krishnan
30/09/2022

[4] The Claimant contends that the Hotel did not hold any Domestic Inquiry (DI') prior to the dismissal of the Claimant. The Hotel did not produce any evidence on all charges against the Claimant and did not take into consideration the explanation provided by the Claimant. The termination letter dated 27.9.2022 contained different reason than what was alleged in the show cause letter.

[5] The Claimant averred that there was an inordinate delay on part of the Hotel when they issue the show cause letter on 15.9.2022, for the incident alleged to have occurred in January 2022.

THE COMPANY'S CASE

[6] The Hotel averred that the Claimant was employed as the Maintenance Manager on 15.1.2018 and his last drawn salary was RM8,740.99.

[7] The Hotel averred that on 9.8.2022, the Hotel received an email from the Claimant wherein the Claimant had submitted for an insurance compensation claim to Etiqa Takaful, the Hotel's insurance provider for the sum of RM10,616.80 ('insurance Claim') for an alleged car accident involving a Honda CRV bearing car plate no, VGY 8223 ('the car') which took place on 27.1.2022 at the Hotel's premises at Hilton Garden Inn, Kuala Lumpur South (the accident'). In his email, the Claimant indicated himself as the point of contract for the claim and attached the claim for dated 9.8.2022, an incident report dated 27.1.2022 and a quotation for the cost of repairs for the car.

[8] Subsequently on 18.8.2022, the Cluster Director of Finance sought confirmation from the Claimant relating to the insurance claim and the Claimant claimed that the accident happened in the Hotel and implying that the car owner was the Hotel guest and the insurance claim was submitted on behalf of the guest. The Hotel subsequently discovered that the Claimant has as early as 27.1.2022 represented to number of employees of the Hotel that the accident was involving a guest of the Hotel. Therefore, the Hotel decided to commence investigation sometime in September 2022.

[9] The Hotel interviewed the Claimant on 12.9.2022 and during the interview the Claimant refused to sign the interview statement for confirmation. The Hotel had found out that the Claimant had breached the terms and conditions of the employment and the Hotel's code of conduct by failing to act with honesty and integrity.

[10] The Hotel issued a show cause letter dated 15.9 2022 and the Claimant replied on 19.9.2022. The Claimant was suspended for 14 days from 15.9.2022, however the

Claimant refused to surrender the office key to the Hotel despite express instruction. The Hotel found the Claimant's explanation unsatisfactory as the Hotel reviewed the evidence collected and found out that;

i) That the car was already damaged before the alleged accident on 27.1.2022;

ii) The insurance claim was represented by the Claimant as a guest's claim.

[11] Therefore, the Hotel found out that the Claimant was guilty and Dismissed for the following reasons;

i) Making false claim to the Company's insurance provider Etiqa Takaful on 14.2.2022 for an amount of RM10,616.80 as compensation for your vehicle Honda CRV, VGY 8223 that you claimed damaged from an incident that occurred at the parking lot at Level 5 at Hilton Garden Inn, Kuala Lumpur South;

ii) Being insubordination for refusing to sign the statement of case dated 12.9.2022 and refusing to surrender the office key to Ms. Yvonne Che, Cluster Direcor of Huan Resources when you were suspended from duty on 15.9.2022.

[12] The decision was communicated to the Claimant vide letter of termination dated 27.9.2022. The decision was due to the fact that the Hotel is no longer able to repose the necessary trust and confidence in the Claimant to remain in employment as a

result of the seriousness of the misconduct and the Claimant was also given a verbal warning sometime in April 2019 for shouting a Front office staff of the Hotel.

ISSUES

a) whether the misconduct complained of is established;

b) whether the misconduct warrant a dismissal and whether the dismissal on the ground of misconduct done with just cause and excuse?

THE LAW

[13] In the case of ***WONG CHEE HONG v. CATHAY ORGANIZATION (M) SDN BHD [1988] 1 CLJ 45; [1988] 1 CLJ (Rep) 298***, the Court had stated the followings: *"When the Industrial Court is dealing with a reference under s. 20, the first thing that the court will have to do is to ask itself a question (of) whether there was a dismissal, and if so, whether it was with or without just cause or excuse".*

[14] See the cases of MILAN ***AUTO SDN BHD v. WONG SEH YEN [1995] 2 MLRA*****,** and ***HONG LEONG ASSURANCE SDN BHD v. WONG YUEN HOCK [1995] 1 MLRA 412*****.** In the case of ***STAMFORD EXECUTIVE CENTRE v. PUAN DHARSINI GANESAN (1986) 1 ILR 101,*** it was held that:

> *'..in a dismissal case, the employer must produce convincing evidence that the workman committed the offence. Burden of proof lies on the employer. He must*

prove that the workmen are guilty and it is not the workman who must prove that he is not guilty.'

[15] The burden of proving that the dismissal was done with just cause and excuse, squarely rest upon the Employer/Company. ***(See PELANGI ENTERPRISE SDN BHD v. OH SWEE CHOO & ANOR (2004) 6 CLJ 157).***

[16] In the case of ***IREKA CONSTRUCTION BERHAD v. CHANTIRAVATHAN SUBRAMANIAM JAMES [1995] 1 MELR 373*** it was decided that:

"*It is a basic principle of industrial jurisprudence that in a dismissal case the employer must produce convincing evidence that the workman committed the offence or offences the workman is alleged to have committed for which he has been dismissed. The burden of proof lies on the employer to prove that he has just cause or excuse for taking the decision to impose the disciplinary measure of dismissal upon the employee. The just cause must be, either a misconduct, negligence or poor performance based on the facts of the case ".*

[17] In the case of ***TELEKOM MALAYSIA KAWASAN UTARA v. KRISHNAN KUTTY SANGUNI NAIR & ANOR (2002) 3 CLJ 314*** the Court of Appeal held that the standard of proof that is required in the Industrial Court is that of balance of probabilities. Even if there is misconduct like theft or any dishonest conduct, the standard of proof is still on balance of probabilities and not of beyond reasonable doubt. What this means is that the Company bears the burden of producing convincing evidence that the Company has good grounds for the dismissal and that the exercise

of this decision is made with just cause or excuse. ***(WELTEX KNITWEAR INDUSTRIES SDN BHD v. LAW KAR TOY & ANOR [1998] 4 MLRH 774; [1998] 1 LNS 258).*** Where the dismissal is disputed, the burden of proof rests on the Claimant to show on balance of probabilities that he had been dismissed by his employer. In the present case, there is no dispute as to the dismissal, the only question now is whether the dismissal is done with just cause or excuse. See the Federal Court decision of ***GOON KWEE PHOY v. J & P COATS (M) BHD [1981] 1 MLRA 415***.

COURT'S FINDINGS

[18] The Claimant was terminated vide letter of termination dared 27.9.2022. The Company admitted that the Claimant was terminated due to the seriousness of the misconduct. The Court must decide whether the termination was done with just cause or excuse. At this stage, the Court will evaluate the evidence and testimonies of the witnesses to decide if the termination was done with just cause or excuse.

[19] Misconduct was defined by ***O.P MALHOTRA*** in his book ***THE LAW OF INDUSTRIAL DISPUTE*** as *"any conduct on part of an employee inconsistent with the faithful discharge of his duties towards his employer would be misconduct. Any breach of the express or implied duties of an employee towards his employer, therefore unless it be of trifling nature, would constitute an act of misconduct. In Industrial Law, the word 'misconduct' has acquired a specified connotation. It cannot mean inefficiency or slackness. It is something far more positive and certainly deliberate. The charge of 'misconduct', therefore, is the charge of some positive act or conduct which would be*

quite incompatible with express and implied terms of relationship of the employee to the employer."

[20] ***DR. V.G MHETRAS*** in his book called ***MISCONDUCTS ENQUIRY AND DISMISSALS*** defined misconduct as "*In Industrial Law, 'misconduct' is a mode of behavior and conduct of an employee which is inconsistent with his relationship with the employer. It is an act or omission thereof which is contrary to the expected performance of his duties or in a variance with the faithful discharge of his obligations undertaken by him either expressly or impliedly in accepting the services. Misconduct in industry or legal-being contrary to the rule of right or natural justice, or violation of 'justice according to law'."*

[21] When an action is done willfully and deliberately, it is considered a misconduct and entails a punishment." In the case of ***HONG LEONG EQUIPMENTS SDN BHD v. LIEW FOOK CHUAN & OTHER APPEALS [1996] 1 MELR 142*****,** the Court of Appeal held that;

> *"The fact that an employer has conducted a Domestic Inquiry against his workman is, in my judgment, an entirely irrelevant consideration to the issue whether the latter had been dismissed without just cause or excuse. The findings of a Domestic Inquiry are not binding upon the Industrial Court which rehears the matter afresh. However, it may take into account the fact that a Domestic Inquiry had been held when determining whether the particular workman was justly dismissed."* See also ***SEELAN MANIAM v. MOX GASES SDN BHD (2012) 2 MELR 329*****.**

[22] The Claimant avers that Domestic Inquiry ("DI") was held by the Company with regards to the allegations. The case of ***DREAMLAND CORPORATION (M) SDN BHD v. CHOONG CHIN SOOI & ANOR (1987) 1 MLRA 357*****,** was approved by the Federal Court in the case of ***WONG YUEN HOCK v. SYARIKAT HONG LEONG ASSURANCE SDN BHD (1995) 3 AMR 214*****,** whereby the Courts held that the failure of an employer to hold a pre-domestic inquiry can be cured by the Industrial Court when it hears the reference of the employee for unfair dismissal. Further in the case of ***OSA HOLDINGS SDN BHD v. MAHESWARAN SABARATNAM (1995) 2 ILR 377*****,** the Court held that a failure to convene a Domestic Inquiry would not render the dismissal as being without just cause or excuse.

[23] The core of the allegation here is a false claim made by the Claimant misrepresenting the claim as that of a guest's vehicle. The Claimant was dismissed due to serious misconduct which made the Hotel lose the trust and confidence in him.

MISREPRESENTATION MADE BY THE CLAIMANT

[24] The Company averred that the Claimant had misrepresented the Company into believing that the vehicle belongs to one of the guests of the Hotel. The Company averred that the Claimant failed to submit the claim firm, incident report and the quotation to COW2 being the Cluster Director of Finance instead the Claimant submitted the claim to the Company's insurance provider Etiqa Takaful on 9.8.2022 when the alleged incident took place on 27.1.2022. The Claim should have been submitted to COW2 first

[25] The Company refers to **page 16 of COB1,** email sent to COW2. The Company submitted that the Claimant had represented that the vehicle belonged to a guest of the Hotel. There is nothing on **page 16 of COB1** where the Claimant indicated or misrepresented the Company that the vehicle belonged to the guest. However, reference made to **page 15 of COB1**, the Company submitted that the Claimant failed to inform or reveal to COW2 that the vehicle belongs to him. The Claimant had clearly written in the email to refer to the incident form **(refer to page 21 to 25 of COB1)**. The incident report on **page 21,** clearly did not mention any with reference to the guest. The details given by the Claimant were his contact number and his car details. If COW2 had gone through the incident report, she would have known that the vehicle belonged to the Claimant. The email page **15 & 16 of COB1,** clearly indicates that COW2 did not refer to the documents before communicating to the Claimant, COW1 also testified that there was no written Standard Operation Procedure ('SOP") with regards to the claim. COW1 stated that the Custer Director had an impression that the claim was for the guest and a follow up email was sent to the Claimant (refer to **page 15 & 16 of the COB1**). The Claimant's counsel asked COW1 if he had verified with the Claimant who the guest was and COW1 answered that he did not. COW1 further testified that the document at **page 9 of CLB1** was for the employee of the Hotel, which is consistent with the Claimant's statement.

[26] The Company further submitted that the Claimant's contention that others were aware the claim was for his own vehicle does not hold water as the Claimant employee of the Hotel are not allowed to make claims. On the other hand, the Claimant contended that there were 2 forms for the claim, the Team Member Incident report was for the employees where else the Internal Incident Report was for the Guests.

When asked in the cross examination whether an employee can claim for accidents, COW1 stated that it depends on the nature of the accident and if its due to the employee's own negligent, claim is not allowed.

[27] The Claimant stated that he had informed Mr. Ainuddin ('Assistant Security Manager') that the vehicle belonged to him. The Assistant Security Manager still employed in the Hotel, however the Company failed to bring the Assistant Security Manager as the witness to shed some light into this conflicting evidence. The only evidence with regards to the accident was forwarded by the Claimant himself vide WhatsApp, there is no other available evidence as the accident was alleged to have taken place on 27.12022 however the claim surfaced on 9.8.2022.

[28] COW2 on the other hand stated that he found out about the incident in August 2022 when the claim was submitted to COW2. Furthermore, COW2 testified that the form was presented for his signature by the Claimant while he was going out of the office and he was presented with the form in a rush and did not check the details in the form. COW2 also admitted that he did not check with the Finance whether the form was submitted in January or not. COW2 also admitted that the Claimant did not write false information in the claim form. When the Court asked COW2 whether he has never seen **page 9 of CLB1** before, he answered no. Being the investigation officer for this allegation, he is expected to be aware of this very important document which is the Team member's Incident Form. The Court is puzzled how could an investigation officer investigate the matter without going through the document. COW2 has stated that he had gone through all the documents including the cctv footage, the Claimant's explanation to the show cause letter however in Court, COW2 testified that he has

never seen the incident report before, according to COW2 the document was never provided to him during the investigation. There is no investigation report available in the Bundle to substantiate COW2's evidence. COW2 also testified that he did not view the cctv footage during the investigation. COW2 admitted that he overlooked the claim form twice first when he signed the form and secondly during the investigation. COW2 signed the claim form on **page 11 of COB1.**

[29] COW1 and COW2 testified in Court that the Claimant verbally mentioned to them that the claim was for the guest of the Hotel however the Hotel did not provide any evidence to prove that the Claimant had stated that the claim was for the guest.

[30] The Company argued that according to the Employee Handbook (**page 60 of COB1**) which was handed to the Claimant, clearly states that the Hotel will not accept liability for the loss or damage to the Team member's property. However, there was a claim form for the Team Member, and the Company did not at any material time during the claim or even during the investigation deny the Claimant's right to claim. COW2 need not have signed the Claimant form in the first place. Alternatively, the Hotel could have just denied the claim at any time, which was not the case. On the other hand, COW2 and COW1 also testified that the Team Member's Incident form was for employees to make the claim.

[31] The termination letter dated 27.09.2022 contained 2 allegations, 1st allegation was stated in the show cause letter however the 2nd allegation was never communicated to the Claimant vide the show cause letter. As the Court illustrated above, there was no cogent evidence adduced by the Hotel to prove the allegation of

misrepresentation for a false claim. The Claimant did not at any material time misrepresent the Hotel into believing that the vehicle belonged to the Hotel guest. The Hotel claimed that the Hotel was under the impression that the claim was for the guest. The Hotel was under the impression that the vehicle belonged to the guests due to their own failure to verify the documents before the Claimant was charged. Both COW1 and COW2 testified that they did not verify the documents with the Claimant. The cctv footage was not clear whether the vehicle was damaged prior to the accident or on the incident. The Hotel failed to prove the case on balance of probabilities all the charges of misconduct against the Claimant. The Hotel has acted on a suspicion however there was no grounds and evidence to believe there was a reasonable suspicion. At most, the Hotel had merely casted doubt based on the surrounding circumstances. The Hotel has the burden to prove the case on balance of probabilities and not just casting doubts.

DECISION

[32] This Court finds that, the Claimant was unfairly dismissed based on the reasons illustrated above. The Company was unable to adduce sufficient evidence to prove the charges on balance of probabilities. The Claimant's termination purportedly was lacking in good faith, improper and unfair for reasons which I have enumerated herein above. Accordingly, the Court finds that the Claimant was dismissed without just cause or excuse. Therefore, the Claimant's claim hereby allowed.

REMEDY

[33] Considering the facts of this case, the Court finds that reinstatement may not be an appropriate remedy. Therefore, the monetary award of compensation in lieu of reinstatement would be more suitable ***(KOPERASI SERBAGUNA SANYA BHS (SABAH) v. DR. JAMES ALFRED (SABAH) & ANOR [2000] 3 CLJ 758.*** This Court will thereby order compensation in lieu of reinstatement of one month salary for each year of completed service to the Claimant.

[34] The Claimant's last drawn salary was RM8,740.99 and for the purpose of calculation, this Court disregard variable figures such as reimbursement, allowances and commissions. The Court is also mindful of the provisions of ***Section 30(5), Section 30(6A) and The Second Schedule of the Industrial Relations Act 1967*** in considering the appropriate relief to be awarded to the Claimant. Having considered all the above items and items *1 and 3 of the Second Schedule of the Act,* the Claimant is ordered for back wages (maximum of 24 months) from his last drawn salary. The Claimant gave evidence that he was working after the dismissal therefore, the Court will make deductions from the back wages for the post dismissal earning.

Back wages of 24 month:

RM8,740.99 x 12 months = RM104,891.88

Deduction of 12 months for post dismissal earning

Compensation in lieu of reinstatement of one month pay for each year of service:

RM8,740.99 X 4 month	=	RM34,963.96
		==========
TOTAL		**= RM 139,855.84**
		==========

[35] It is hereby ordered that the total sum of **Ringgit Malaysia One Hundred Thirty Nine Thousand Eight Hundred Fifty Five and Eighty Four Only (RM139,855.84)** after statutory deductions if any, is to be paid by the Company to the Claimant's solicitor Messrs Lavaniyan Nathan & Associates within 30 days from the date of this Award.

HANDED DOWN AND DATED THIS ON 25TH DAY OF NOVEMBER, 2025

-Signed-

(VANITHAMANY A/P SIVALINGAM)
CHAIRMAN
INDUSTRIAL COURT OF MALAYSIA
KUALA LUMPUR